

PETITION - WEST VIRGINIA Sec. 61-14-9 VACATUR AND EXPUNGEMENT PETITION

IN THE COURT

(the West Virginia circuit court in the county of conviction or juvenile adjudication)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:

.....

WEST VIRGINIA Sec. 61-14-9 VACATUR AND EXPUNGEMENT PETITION

A. WHAT THE COMMITTED RECORD ESTABLISHES ABOUT THIS ROUTE

This petition is brought on the route the committed route contract records as "Sex-trafficking-victim vacatur and expungement", under W. Va. Code Sec. 61-14-9.

The compiled West Virginia profile records the substance of this route as follows. A person convicted of prostitution, or adjudicated delinquent, as a direct result of being a trafficking victim may petition the circuit court in the county of conviction or juvenile adjudication to vacate the conviction/adjudication and expunge the record. The court may grant relief if it finds the person's participation in the offense was a direct result of being trafficked. No rehabilitation requirement is imposed for this trafficking-victim expungement route. ("<https://code.wvlegislature.gov/61-14-9/>")

The committed contract records the timing of this route as: no fixed elapsed waiting period; the petition follows a covered conviction or adjudication plus facts establishing the direct-result trafficking nexus.

The committed contract records these conditions on the route: Covered prostitution-related conviction or juvenile adjudication; Direct result of sex trafficking; Statutory proof conditions satisfied.

B. THE PETITIONER

Name: Maria-Alejandra O'Shaughnessy-Whitfield

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself, never from memory.

[C1 - exact offense/statute] Exact offense/statute?

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[C2 - conviction/adjudication] Conviction/adjudication?

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[C3 - trafficking period] Trafficking period?

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[C4 - direct-result evidence] Direct-result evidence?

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[C5 - supporting records] Supporting records?

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[C6 - other counts] Other counts?

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[C7 - requested vacatur and expungement] Requested vacatur and expungement?

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D. THE REQUEST

The petitioner asks the Court to vacate the conviction or adjudication described above and expunge the record, under W. Va. Code Sec. 61-14-9.

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

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39501-2214

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Route: obligation:runtime-only:WV:sex-trafficking-victim-vacatur-and-expungement

FILING INSTRUCTIONS - WEST VIRGINIA Sec. 61-14-9 VACATUR AND EXPUNGEMENT PETITION

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

FILING INSTRUCTIONS - WEST VIRGINIA Sec. 61-14-9 VACATUR AND EXPUNGEMENT PETITION

WHAT THIS ROUTE IS, AND WHO RUNS IT

The committed route contract records this route as "Sex-trafficking-victim vacatur and expungement", under W. Va. Code Sec. 61-14-9, with outcome mode "participant_packet".

The committed contract names the packet components for this route as: Petition under Sec. 61-14-9; Direct-result nexus evidence. This packet composes the filing pages; anything on that list that is a RECORD rather than a pleading is a document you obtain and file with the petition.

Who runs it: The participant petitions the circuit court and the court decides - the compiled profile records that the court "may grant relief if it finds the person's participation in the offense was a direct result of being trafficked". Its instruction about how to get there comes first: "West Virginia has a special relief route for prostitution records caused by sex trafficking. This can involve vacating the conviction or juvenile adjudication, so it should be routed to legal aid or an attorney."

WHAT YOU DO

- Read the stop conditions before anything else.
- If you go on, obtain the direct-result nexus evidence the committed contract names as a component of this packet.
- Fill only the labelled items. Nothing on any page asks for an account of what happened to you.

WHAT YOU DO NOT DO

- Do not write an account of what was done to you on any page of this packet. Nothing here asks for one, and the compiled record's own instruction is that this route goes to legal aid or an attorney.
- Do not file anything before you have thought about what becomes public when you do. A court file is a public record unless something makes it otherwise, and nothing in this packet makes it otherwise.
- Do not expect a rehabilitation showing to be required here. The compiled profile records in terms that no rehabilitation requirement is imposed for this route - which is not true of West Virginia's ordinary conviction-expungement routes.
- Do not treat this as covering every trafficking-related West Virginia conviction. The committed contract records that it is limited to the statute's covered prostitution-related offence and that broader offences require referral rather than an invented rule.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

No committed record this packet binds states a filing fee, or a fee waiver, for this route. The office that answers both is the office of the clerk of the West Virginia circuit court in the county of conviction or juvenile adjudication. Ask before you go, because a filing you cannot pay for is a filing you cannot make. This packet takes NO fee figure from West Virginia's other expungement sections. The compiled profile carries no-fee lines keyed to W. Va. Code Sec. 61-11-25, and for Sec. 61-11-26 it records that the circuit clerk charges the same fee as filing a civil action and that a person who receives an expungement order must pay a \$100 West Virginia State Police processing fee; the committed route-obligation census records that civil-action fee as the Sec. 59-1-11(a)(1) fee of \$200. This route is Sec. 61-14-9 and is none of those sections, so this packet takes no figure from any of them.

WHO MUST BE SERVED, AND WHO IS NOTIFIED

No committed record this packet binds states who must be served on this route, or how. The office that answers it is the office of the clerk of the West Virginia circuit court in the county of conviction or juvenile adjudication.

WHEN TO STOP AND GET HELP INSTEAD

- ****this is the first thing the committed record says about this route:**** West Virginia has a special relief route for prostitution records caused by sex trafficking. This can involve vacating the conviction or juvenile adjudication, so it should be routed to legal aid or an attorney.
- the facts that establish the connection are yours to tell and yours alone. No page in this packet asks for an account of what was done to you, and nothing here should be written out for anyone who has not been engaged to act for you;
- your own safety is in question, now or once a filing becomes a public court record;
- there are other counts on the same case, or other cases - every committed contract in this group records other counts as a fact the route must collect;
- any immigration question is involved.

Route: obligation:runtime-only:WV:sex-trafficking-victim-vacatur-and-expungement